

****at 9:30 a.m.****

McGrew Behavior Intervention Services, Inc. v. Israel Delgado

25CV001274

[1] DEFENDANT ISRAEL DELGADO’S MOTION TO STRIKE (ANTI-SLAPP)

TENTATIVE RULING: The Clerk is directed to STRIKE from the Court’s file the Supplemental Reply in Support of Opposition and the Amended Declaration of Deborah McGrew filed June 30, 2026. The Motion to Strike the Complaint is GRANTED. The request for an award of attorneys’ fees is CONTINUED to August 20, 2026, at 8:30 a.m. in Dept. A.

The moving party failed to include in the notice of this motion proper notice of the Court’s tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

A. PRELIMINARY MATTERS

1. Nature of Motion

Defendant Israel Delgado specially moves for an order striking the Verified Complaint, as a strategic lawsuit against public policy (SLAPP) pursuant to Code of Civil Procedure section 425.16 (Section 425.16 or Anti-SLAPP Statute).

2. Nature of Claims

On June 27, 2025, Plaintiff McGrew Behavior Intervention Services, Inc. (McGrew) filed a Verified Complaint (Complaint) against Defendant Israel Delgado. The gravamen of the Complaint is that Plaintiff’s business has suffered damage, and will continue to suffer damage, from certain statements made, published, and disseminated by Mr. Delgado. Pursuant to the allegations of the Complaint, McGrew is a corporation “that provides specialized in-school behavior intervention services to school districts, including the Napa Valley School District, to assist in caring for pupils with physical and mental disabilities.” (*Id.* at ¶ 1.) McGrew employed one Richard Wolf, a non-party to the instant action, as an Aide and for the purpose of providing services on behalf of McGrew to students at American Canyon High School. (*Id.* at ¶ 7.) Beginning in or around March 20, 2025, Mr. Delgado “posted a series of videos on TikTok, Instagram, Facebook and other social media platforms alleging that one of McGREW’S employees (later identified as Richard Wolf) physically abused DELGADO’S minor child, assaulted his minor child, placed his minor child in an isolation chamber, and deprived his minor child of food and water. DELGADO also alleged that McGREW was negligent for allowing said employee to remain on American Canyon High School premises subsequent to these allegations.” (*Id.* at ¶ 8.)

By the Complaint, McGrew prays for damages and injunctive relief and asserts claims based in libel, slander, invasion of privacy, interference with economic advantage, and trade libel / business disparagement.

3. Court's Order Striking Supplemental Reply in Support of Opposition and Amended Declaration of Deborah McGrew

Mr. Delgado filed the instant Motion on November 3, 2025, and set the matter for hearing on December 2, 2025. On November 17, 2025, McGrew filed an opposition brief. On November 24, 2025, Mr. Delgado filed a reply. The matter then came on for hearing December 2, 2025. It was, thereafter, continued a number of times.

On June 30, 2026, McGrew filed a "Supplemental Reply in Support of Opposition" to the Motion, and an Amended Declaration of Deborah McGrew. The Court can find no order granting McGrew leave to file the Supplemental Reply or Amended Declaration. As such, the Court finds that they constitute pleadings "not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court." (Code Civ. Proc., § 436, subd. (b).) On this grounds, the Court orders the Clerk to STRIKE the Supplemental Reply and Amended Declaration from the case file.

B. LEGAL ANALYSIS

1. Legal Background

"The special motion to strike established in section 425.16 may be used to attack a cause of action if (1) the cause of action arises from 'any act [by the defendant] in furtherance of the person's right of petition or free speech under the United States or California Constitution,' and (2) the defendant was exercising his or her right of free speech 'in connection with a public issue.' (Citation.) If the moving defendant establishes those two elements, the burden shifts to the plaintiff to establish there is a probability he or she will prevail on the cause of action." (*Chabak v. Monroy* (2007) 154 Cal.App.4th 1502, 1511.) "The anti-SLAPP statute's definitional focus is not the form of the plaintiff's cause of action but, rather, the defendant's activity that gives rise to his or her asserted liability – and whether that activity constitutes protected speech or petitioning." (*Navellier v. Sletten* (2002) 29 Cal.4th 82, 92 (*Navellier*).)

2. The Activities Giving Rise to McGrew's Claim(s) are Protected Activity Under the Statute

As defined by the anti-SLAPP statute, protected activity includes "any written . . . statement . . . made in a place open to the public or a public forum in connection with an issue of public interest." (Code Civ. Proc. § 425.16, subd. (e)(3) (Section 425.16).)

It is uncontroverted that McGrew is a contractor that provides specialized in-school behavior intervention services to school districts, including the Napa Valley School District, to assist in caring for students with disabilities. (See Complaint at ¶ 1; see also Opposition at 2:21-27.)

Pursuant to the allegations of the Complaint, the activities that give rise to McGrew's claims are "alleging that one of McGREW'S employees . . . physically abused DELGADO'S minor child, assaulted his minor child, placed his minor child in an isolation chamber, and deprived his minor child of food and water" and claiming that "McGREW was negligent for allowing said employee to remain on American Canyon High School premises subsequent to these allegations" through social media posts and at a publicized demonstration at American Canyon High School. (See Complaint at ¶¶ 8-11.)

"[R]eviews posted to an Internet website meet [Section 425.16, subd. (e)(3)'s] definition of protected activity." (*Abir Cohen Treyzon Salo, LLP v. Lahiji* (2019) 40 Cal.App.5th 882, 887-88 (*Lahiji*) [upholding trial court finding that comments posted to a website by a former client regarding quality of a law firm's services were protected activity]; see also *Chaker v. Mateo* (2012) 209 Cal.App.4th 1138, 1146 (*Chaker*) ["statements posted to the Ripoff Report Web site about [Plaintiff's] character and business practices plainly fall within in the rubric of consumer information about [Plaintiff's] business and were intended to serve as a warning to consumers about his trustworthiness"].)

"The public interest requirement of section 425.16, subdivision (e)(3) must be "construed broadly" so as to encourage participation by all segments of our society in vigorous public debate related to issues of public interest.' [Citation.] The Legislature inserted the 'broad construction' provision out of concern that judicial decisions were construing that element of the statute too narrowly." (*Gilbert v. Sykes* (2007) 147 Cal.App.4th 13, 23-24.) (*Gilbert*) [held: a public website created by Plaintiff dedicated to the pros and cons of plastic surgery constitutes protected activity under Section 425.16, subdivision (e)(3) where "the Web site was not limited to attacking [plaintiff] but contributed to the general debate over the pros and cons of undergoing cosmetic surgery"].)

McGrew contends that the Anti-SLAPP Statute and caselaw *require* Mr. Delgado to make an evidentiary showing to support his initial burden. (See, *e.g.*, Opposition at 4:25, *et seq.*) None of the authority cited by McGrew, however, support the contention. Section 425.16, subdivision (b)(2) provides only that the Court shall consider pleadings and affidavits filed in support of and opposition to an Anti-SLAPP Motion. *Sweetwater Union High School Dist. v. Gilbane Building Co.* (2019) 6 Cal.5th 931, at the cited page 940, contains no suggestion that a moving defendant is required to make an evidentiary showing to carry its initial burden. Rather, that portion of the opinion discusses a *plaintiff's* burden of producing evidence to establish a probability of success on its claim(s). While evidentiary support may be appropriate in some circumstances, the Court is aware of no authority *requiring* a moving defendant to submit evidence to carry its initial burden if the showing can be made from reference to the pleadings, caselaw, and matters subject to judicial notice.

For example, no evidence is required for the Court to find that the issue of whether or not an agent of a contractor placed in a public school has mistreated students of the public school is a matter of public interest. In *Terry v. Davis Community Church* (2005) 131 Cal.App.4th 1534, 1547 the court held that "[t]he issue as to whether or not an adult who interacts with minors in a church youth program has engaged in an inappropriate relationship with any of the minors is

clearly a matter of public interest.” There can be no dispute but that analogous behavior in a *public* school is of even greater concern to the public.

Based on the foregoing, the Court finds that the activities that form the basis of McGrew’s claims against Mr. Delgado are protected activity pursuant to Section 425.16, subdivision (e)(3).

McGrew next argues that “[w]hen determining whether the speech contributed to public debate, the court must examine whether a defendant through public or private speech or conduct participated in, or furthered, the discourse that makes an issue one of public interest.” (Opposition at 5:21-23.)

“What it means to ‘contribute to the public debate’ [citation] will perhaps differ based on the state of public discourse at a given time, and the topic of contention. But ultimately, our inquiry does not turn on a normative evaluation of the substance of the speech. We are not concerned with the social utility of the speech at issue, or the degree to which it propelled the conversation in any particular direction; rather, we examine whether a defendant – through public or private speech or conduct – participated in, or furthered, the discourse that makes an issue one of public interest.” (*FilmOn.com Inc. v. DoubleVerify Inc.* (2019) 7 Cal.5th 133, 150-151.)

The Court concludes that alleged statements that an individual who abused a public-school student was permitted, by his employer – a contractor with the public school, to remain on assignment at the public school are statements that contribute to the public debate on the safety of the public’s schools for their students. And again, the Court finds that this issue is one of utmost public interest. The Court finds that the issue of the safety of public schools is of far greater public concern than token collecting, the subject at issue in *Weinberg v. Feisel* (2003) 110 Cal.App.4th 1122, 1128, cited by McGrew.

3. McGrew Fails to Carry It’s Burden of Showing a Probability of Prevailing on its Claims

“If the court finds such a showing has been made, it then determines whether the plaintiff has demonstrated a probability of prevailing on the claim. Under section 425.16, subdivision (b)(2), the trial court in making these determinations considers ‘the pleadings, and supporting and opposing affidavits stating the facts upon which the liability or defense is based.’” (*Equilon*, supra, 29 Cal.4th at 67.) “[I]n order to establish the requisite probability of prevailing (§ 425.16, subd. (b)(1)), the plaintiff need only have ‘stated and substantiated a legally sufficient claim.’ [Citations.] ‘Put another way, the plaintiff ‘must demonstrate that the complaint is both legally sufficient and supported by a sufficient prima facie showing of facts to sustain a favorable judgment if the evidence submitted by the plaintiff is credited.’ [Citations.]’ (*Navellier*, supra, 29 Cal.4th at 88-89.) Because the burden on the plaintiff is similar to the standard used in determining motions for summary judgment. ‘[t]he showing must be made through ‘competent and admissible evidence.’ [Citations.] Thus, declarations that lack foundation or personal knowledge, or that are argumentative, speculative, impermissible opinion, hearsay, or conclusory are to be disregarded.” (*Gilbert v. Sykes* (2007) 147 Cal.App.4th 13, 26 (*Gilbert*)). Moreover,

“[i]n opposing an anti-SLAPP motion, the plaintiff cannot rely on the allegations of the complaint, but must produce evidence that would be admissible at trial.” (*HMS Capital, Inc. v. Lawyers Title Co.* (2004) 118 Cal.App.4th 204, 212 (*HMS Capital*).) “In making this assessment it is ‘the court’s responsibility . . . to accept as true the evidence favorable to the plaintiff . . .’ [Citation.] The plaintiff need only establish that his or her claim has ‘minimal merit’ [citation] to avoid being stricken as a SLAPP.” (*Soukup v. Law Offices of Herbert Hafif* (2006) 39 Cal.4th 260, 291.)

McGrew asserts that “McGREW’s Verified Complaint and the Declaration of Deborah McGrew (McGrew Decl.) constitute the prima facie evidence required. McGREW has alleged all of the required elements of each cause of action including libel, slander, false light invasion of privacy, intentional interference with prospective economic advantage, trade libel / business disparagement, preliminary injunction and permanent injunction.” (Opposition at 7:4-8.) As noted, above, the Complaint, even if verified, cannot be relied on in establishing its showing. (See *HMS Capital, supra*, 118 Cal.App.4th at 212.)

McGrew fails to: (1) set out the element of its claims; (2) identify, for the Court, what allegations of the Complaint support each element; and/or (3) cite to evidence supporting each such allegation. It is not the Court’s obligation to pour over the materials in the file in search of support for McGrew’s argument. (See *Quantum Cooking Concepts, Inc. v. LV Associates, Inc.* (2011) 197 Cal. App. 4th 927, 934 [“Rules of Court rule 3.1113 rests on a policy-based allocation of resources, preventing the trial court from being cast as a tacit advocate for the moving party’s theories by freeing it from any obligation to comb the record and the law for factual and legal support that a party has failed to identify or provide”].)

The McGrew Decl. is the *only* evidence properly submitted by McGrew in support of its Opposition. It contains no evidence tending to demonstrate that any of the alleged statements “that one of McGREW’S employees (later identified as Richard Wolf) physically abused DELGADO’S minor child, assaulted his minor child, placed his minor child in an isolation chamber, and deprived his minor child of food and water” were false. (See Complaint at ¶¶ 8 and 11.)

McGrew’s focus, through the Opposition, is on Mr. Delgado’s alleged statement that “McGREW was negligent for allowing said employee to remain on American Canyon High School premises subsequent to these allegations.” (Complaint at ¶¶ 8 and 11.)

McGrew fails, however, to persuade the Court that this statement constitutes a statement of fact sufficient to support its asserted claims.

“‘The *sine qua non* of recovery for defamation . . . is the existence of falsehood.’ [Citation.] Because the statement must contain a provable falsehood, courts distinguish between statements of fact and statements of opinion for purposes of defamation liability. Although statements of fact may be actionable as libel, statements of opinion are constitutionally protected.” (*McGarry v. Univ. of San Diego* (2007) 154 Cal.App.4th 97, 112.) “[T]he question is not strictly whether the published statement is fact or opinion. Rather, the dispositive question is whether a reasonable fact finder could conclude the published statement declares or implies a

provably false assertion of fact.” (*Franklin v. Dynamic Details, Inc.* (2004) 116 Cal.App.4th 375, 385.)

McGrew argues that “DELGADO’s accusations are factual. Accusing a licensed professional contractor of alleged negligence and complicity in criminal acts is a provably false assertion of fact, not protected opinion as DELGADO contends. These statements imply a factual basis (e.g., that MCGREW knew of prior bad acts and ignored them), which Plaintiff has sworn under oath are false (McGrew Decl., ¶ 7).” (Opposition at 7:27-8:3.)

First, the argument “begs the question” in that its premise assumes the truth of its conclusion. As such, it does not aid the Court’s analysis.

Second, there is no allegation, that the Court can find, in the Complaint that Mr. Delgado accused McGrew of “complicity in criminal acts.” Again, what McGrew has alleged is that Mr. Delgado stated that “MCGREW was negligent for allowing said employee to remain on American Canyon High School premises subsequent to these allegations.” McGrew’s own evidence tends to support a finding that the employee *did* “remain on American Canyon High School premises subsequent to the[] allegations.” “[T]he School and MCGREW agreed to reassign Mr. Wolf. MCGREW removed Mr. Wolf from the case and assigned him to the substitute list. On the day in question he was substituting at that school in another classroom after NVUSD requested a substitute.” (See McGrew Decl. at ¶ 21.)

The question, therefore, becomes whether the statement “McGrew was negligent [for allowing it]” declares or implies a provably false assertion of fact. It strikes the Court that whether McGrew’s asserted actions in allowing the employee to remain constitute negligence is a mixed question of law and fact. The element of whether McGrew owed someone a duty to ensure that its employee did not remain on campus after the allegations is a question of law. (*Hassaine v. Club Demonstration Services, Inc.* (2022) 77 Cal.App.5th 843, 850 [“Whether a duty exists is a question of law to be resolved by the court”].) In this context, the Court does not find that the statement “McGrew was negligent” contains a provable falsehood. As such, it is not a statement that can support claims for defamation.

Even assuming, *arguendo*, that the statement (“MCGREW was negligent for allowing said employee to remain on American Canyon High School premises subsequent to these allegations”) is one that may properly support a defamation claim, McGrew, in arguing that the statement *was* demonstrably false, notes only that it “conducted a thorough background, and criminal records check on Mr. Wolf. (McGrew Decl., § 11.) McGrew ensured Mr. Wolf was trained, including Non-Violent Crisis Intervention. When a non abuse [sic] related request for a change was made, MCGREW and NVUSD investigated, and the investigation found no witnesses to confirm DELGADO’s allegations. (McGrew Decl., §§ 20, 21).” (Opposition at 7:14-18.) Neither the argument, nor the evidence cited in support thereof, is sufficient to make a *prima facie* showing that the alleged statement, by Mr. Delgado, was false.

Finally, Ms. McGrew’s conclusory statement that “NVUSD and not MCGREW has sole authority to determine which individuals are permitted on its campus” is directly contradicted by her statements that “the School and MCGREW agreed to reassign Mr. Wolf. MCGREW removed

Mr. Wolf from the case and assigned him to the substitute list. On the day in question he was substituting at that school in another classroom after NVUSD requested a substitute.” (Compare McGrew Decl. ¶ 22 with ¶ 21.)

Based on the foregoing, the Court does not find that McGrew has made a prima facie showing of a reasonable probability of prevailing on its claims.

4. Attorneys’ Fees

Mr. Delgado’s request for attorneys’ fees is CONTINUED to August 20, 2026, at 8:30 a.m. in Dept. A.

[2] APPLICATION FOR ORDER TO SHOW CAUSE RE PRELIMINARY INJUNCTION

TENTATIVE RULING: The Application is DENIED.

A. ORDER TO SHOW CAUSE

On July 1, 2025, the Court issued an Order to Show Cause Re Preliminary Injunction. The Court thereby ordered Defendants Israel Delgado to show cause why he should not be enjoined, during the pendency of this action, from the following:

1. Making, publishing, posting, disseminating, broadcasting . . . any false, defamatory, or disparaging statements, videos, audio recordings, images, or written content concerning McGREW, its business practices, its employees (in the context of their employment by McGREW and McGREW’s alleged conduct related thereto), or its services, including but not limited to statements alleging or implying that McGREW was negligent in the hiring, supervision, or retention of its employees; that McGREW was negligent in allowing any employee to be on school premises; that McGREW condoned, participated in, or was complicit in any alleged misconduct by its employees; or any other statements that have the natural tendency to injure McGREW in its business or reputation.
2. From repeating or republishing the specific false and defamatory allegations made by DELGADO on or about March 20, 2025, and thereafter, on platforms including TikTok, Instagram, Facebook, other social media, and as further disseminated through media outlets like Univision, concerning McGREW’s alleged negligence or other wrongdoing.
3. And from directly or indirectly soliciting, inducing, or encouraging any third parties to publish, republish, or disseminate the aforementioned false and defamatory statements concerning McGREW.

A. THE COMPLAINT

On June 27, 2025, Plaintiff McGrew Behavior Intervention Services, Inc. filed a Verified Complaint (Complaint) against Defendant Israel Delgado. The gravamen of the Complaint is that Plaintiff’s business has suffered damage, and will continue to suffer damage, from certain

statements made, published, and disseminated by Defendant. Pursuant to the allegations of the Complaint, Plaintiff is a corporation “that provides specialized in-school behavior intervention services to school districts, including the Napa Valley School District, to assist in caring for pupils with physical and mental disabilities.” (*Id.* at ¶ 1.) Plaintiff employed one Richard Wolf, a non-party to the instant action, as an Aide and for the purpose of providing services on behalf of Plaintiff to students at American Canyon High School. (*Id.* at ¶ 7.) Beginning in or around March 20, 2025, Defendant “posted a series of videos on TikTok, Instagram, Facebook and other social media platforms alleging that one of McGREW’S employees (later identified as Richard Wolf) physically abused DELGADO’S minor child, assaulted his minor child, placed his minor child in an isolation chamber, and deprived his minor child of food and water. DELGADO also alleged that McGREW was negligent for allowing said employee to remain on American Canyon High School premises subsequent to these allegations.” (*Id.* at ¶ 8.)

By the Complaint, Plaintiff prays for damages and injunctive relief and asserts claims based in libel, slander, invasion of privacy, interference with economic advantage, and trade libel / business disparagement. On October 2, 2025, Defendant filed a Verified Answer by which he generally and specifically denied each allegation of the Complaint and asserted eighteen affirmative defenses.

B. LEGAL ANALYSIS

An injunction may be granted “[w]hen it appears by the complaint or affidavits that the commission or continuance of some act during the litigation would produce waste, or great or irreparable injury, to a party to the action.” (Code Civ. Proc. § 526, subdivision (a)(2).) “[A]s a general matter, the question whether a preliminary injunction should be granted involves two interrelated factors: (1) the likelihood that the plaintiff will prevail on the merits, and (2) the relative balance of harms that is likely to result from the granting or denial of interim injunctive relief.” (*Jay Bharat Developers, Inc. v. Minidis* (2008) 167 Cal.App.4th 437, 443, quoting *White v. Davis* (2003) 30 Cal.4th 528, 554; see *IT Corp. v. County of Imperial* (1983) 35 Cal.3d 63, 72.) As to the first, “[a] plaintiff seeking a preliminary injunction bears the burden of presenting facts which show a reasonable probability that [it] will succeed on the merits.” (*Citizens for Better Streets v. Bd. Of Supervisors* (2004) 117 Cal.App.4th 1, 6.)

Plaintiff fails to carry that initial burden here. The only evidence submitted by Plaintiff in support of the motion is a 10-paragraph declaration of Deborah McGrew (McGrew Decl.), who identifies as Plaintiff’s owner and Executive Director. (See *id.* at ¶ 1.) Plaintiff also cites to its Verified Complaint as evidence. (See Code Civ. Proc. § 527, subd. (a) “[a] preliminary injunction may be granted at any time before judgment upon a verified complaint, or upon affidavits if the complaint in the one case, or the affidavits in the other, show satisfactorily that sufficient grounds exist therefor”].)

The only discussion in Plaintiff’s Supporting Memorandum (Support Memo) relating to the likelihood that Plaintiff will prevail on the merits involves its claim for defamation. (See *id.* at 4:21, *et seq.*) Plaintiff acknowledges that “[t]o prevail on a cause of action for defamation, a plaintiff must prove publication that is false, defamatory, unprivileged, and has natural tendency to injure or causes special damage.” (*Id.* at 4:22-23; see also)

Plaintiff fails to make an evidentiary showing that the alleged statements were false. In addressing this element of the claim Plaintiff cites exclusively to paragraph 7 of the McGraw Decl. and paragraph 13 of the Complaint. (See Support Memo at 5:3-5.) McGrew declares only that, “[t]hese statements are untrue.” (McGrew Decl. at ¶ 7.) The Complaint, similarly, alleges only that, “[t]he statements made and published by DELGADO, both in writing and orally, concerning McGREW were, and are, false and unprivileged.” (Complaint at ¶ 13.) Each statement is wholly conclusory. Neither sets forth *evidence* tending to show that one or more of the statements Defendant is alleged to have made is, in fact, untrue. Neither identifies the foundation upon which the conclusion – that the statements are untrue – is based. Finally, as to the Complaint, the Court notes that Defendant filed a verified answer. “[W]hen plaintiffs’ application is based solely upon a verified complaint, a simple verified answer denying the essential allegations of the complaint often justifies refusing to grant the preliminary injunction unless the allegations of the complaint make out a ‘strong case for equitable relief.’ [Citation.]” (*Jessen v. Keystone Sav. & Loan Assn.* (1983) 142 Cal.App.3d 454, 460 (*Jessen*)). The Court does not find that the Complaint, here, makes out a strong case for the relief sought.

Moreover, Plaintiff fails to cite to any evidence, or provide meaningful discussion, on the element of privilege. Plaintiff argues only that “[t]he statements are not protected by any known privilege; they are widespread public broadcasts made with malice or reckless disregard for the truth.” (Support Memo at 5:9-10.)

As Defendant points out, however, the alleged statements concerned putative acts of abuse of Defendant’s special needs son by an employee of Plaintiff. As Defendant states, they were motivated out of a desire to “advocate for Alex’s safety and the safety of other special needs children who may be unable to speak for themselves.” (Declaration of Israel Delgado at ¶ 14.) The statements fairly clearly invoke the so-called common-interest privilege of Civil Code section 47, subdivision (c)(1). “A privileged publication or broadcast is one made: [¶] ... [¶] (c) In a communication, without malice, to a person interested therein, (1) by one who is also interested” (*Ibid.*) Plaintiff failed to address the privilege, and failed to make a prima facie showing that the statements are not privileged thereunder. (See *Taus v. Loftus* (2007) 40 Cal.4th 683, 720 [held: in anti-SLAPP context that Plaintiff failed to make a prima facie showing of likelihood of prevailing on defamation claim based on failure to address the common interest privilege].)

Where a moving party fails to show a likelihood of success on the merits, no injunction may issue, regardless of whether there is a likelihood of irreparable harm. (See *Jessen*, *supra*, 142 Cal.App.3d at 459 [“it is appropriate to deny an injunction where there is no showing of reasonable probability of success, even though the foreclosure will create irreparable harm, because there is no justification in delaying that harm where, although irreparable, it is also inevitable”].)

Based on the foregoing, the Court does not find sufficient grounds for issuing the requested injunction. The Application is, therefore, DENIED.